

The complaint

Mr D complains that Admiral Insurance (Gibraltar) Limited (Admiral) caused damage to his car's roof whilst it was arranging repairs following an accident claim under his motor insurance policy.

What happened

In August 2023 Mr D drove into the rear of another vehicle. He made a claim to Admiral, which it accepted. It arranged for the necessary repairs. When his car was returned to him Mr D noticed that the convertible roof was damaged. It didn't work correctly and was letting in water. This resulted in mould developing on the interior.

Mr D complained to Advantage. It arranged for an inspection by an independent engineer. But it didn't accept responsibility for the damaged roof or the interior. Mr D says he was told his car wasn't fit to drive and believes Advantage is responsible for rectifying the problems he's highlighted.

In its final complaint responses, Advantage says Mr D believes its approved repairer has drilled holes and used cable ties on the roof of his car. But the independent engineer doesn't consider this damage has resulted from the accident, or from the repairs. It says once its garage noticed the issues with water ingress, the car should've been dry stored or returned to Mr D. However, as the car was already damp by this point, there will always have been an issue with damp and mould. It maintains the roof and mould issues aren't accident or repair related and declined to pay for the additional repairs.

Mr D didn't think Advantage had treated him fairly and referred the matter to our service. Our investigator didn't uphold his complaint. She was persuaded by the independent engineer's opinion that the roof damage was pre-existing to Mr D's accident. She didn't think Advantage had behaved unfairly and didn't ask it to do anything further.

Mr D didn't agree and asked for an ombudsman to consider his complaint.

It has been passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so I'm not upholding this complaint. Let me explain.

Mr D's policy covers him for damage resulting from an accident. Advantage is expected to arrange effective repairs. I've considered whether it did so here.

I've read the repair report when Mr D's car was first assessed following the accident. This shows repairs were needed to the front bumper. The photos show a crack on the driver's side of the bumper and some other relatively minor damage.

The claim records say Mr D's car was taken into the repairing garage at the start of September 2023. Mr D chased progress in mid-October. He was told the repairs were complete, but the car was awaiting a geometry alignment check. I can see from the records provided that Advantage's in-house engineer reviewed the repairer's findings. There was an issue with wheel alignment. But he didn't think this was linked to the accident. The engineer also comments on a small stone chip to the front windscreen. He says this wasn't caused by the accident either. The engineer refers to condensation in the car's interior due to it being stored outside. He says there may be a fault with the convertible roof seals, but this isn't accident related.

Based on this evidence there was no requirement for Advantage to repair the wheel alignment/suspension issue or the windscreen damage. Similarly, the damp inside the car wasn't thought to be accident related. It was due to a pre-existing fault

I've read the report from the independent engineer that assessed Mr D's car in January 2024. This was after he'd raised concerns with the repairs. The engineer says the roof trim is held in place with cable ties and the roof is coming away from the sides. He reported the interior as damp and was showing signs of mould on the seats. To rectify these issues, the engineer says the roof needs replacing. But he says these issues are in keeping with the age of the convertible roof and appear to be due to wear and tear. He didn't conclude the damage was accident related or the result of something the repairing garage had done.

I've thought carefully about this evidence. Mr D described the accident as happening at relatively low speed. From what I've seen the damage was limited to the front bumper only. The engineers who assessed the car didn't think there was any accident damage other than to the front bumper. The photos show where this had cracked and some scuffing. Based on this, I think the engineer's comments are persuasive that the damage to the suspension/wheel alignment wasn't caused by the accident. Similarly, it appears unlikely that the roof damage happened during the accident. The repairing garage states it had no reason to touch the roof as it was only repairing the front bumper. Based on what I've read it's unlikely that the garage drilled holes in the roof mechanism or attached cable ties to it. I think what the independent engineer says is reasonable, that this was a pre-existing issue caused by wear and tear over the car's lifetime. Mr D's car is around 14 years old.

It's clear that dampness and mould developed whilst the car was with Advantage's repairer. Its engineer says this is because it was being stored outside. However, I don't think the garage should reasonably have expected the car's roof to leak. The initial assessment didn't comment on a problem with the roof. There was nothing to indicate the car couldn't be stored outside. The accident Mr D was involved in was a relatively minor bump, which cracked the front bumper. Because of this I think Advantage's view is reasonable, that it wasn't the accident or the repairing garage that damaged Mr D's roof. So, I don't think the dampness and mould is something Advantage is responsible for rectifying.

I'm sorry to disappoint Mr D, but I don't think Advantage treated him unfairly when it limited the repairs to his car's front bumper. So, I won't ask it to do anymore.

My final decision

My final decision is that I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr D to accept or reject my decision before 17 October 2024.

Mike Waldron
Ombudsman